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Dkt. 432 MOT

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Plaintiff, vs. NIKODEM PIKOR, Defendant.	Civil No. 1RC19-1-0003776 DEFENDANT/ COUNTERCLAIM PLAINTIFF NIKODEM PIKOR'S MOTION TO STAY ENFORCEMENT OF JUDGMENT; MEMORANDUM IN SUPPORT OF MOTION; DECLARATION OF COUNSEL; CERTIFICATE OF SERVICE

DEFENDANT/ COUNTERCLAIM PLAINTIFF NIKODEM PIKOR'S MOTION TO STAY ENFORCEMENT OF JUDGMENT

Defendant/ Counterclaim Plaintiff Nikodem Pikor ("Defendant"), by and through his counsel, Revere & Associates, LLLC, respectfully moves this Court to stay execution and enforcement of the *Order Granting in Part and Denying in Part Plaintiff and Counterclaim Defendant Association of Apartment Owners of Marine Surf Waikiki, Inc.'s Motion for Attorneys' Fees and Costs*, filed on June 15, 2026, as Dkt. 423 and *Judgment*, filed on June 23, 2026 as Dkt. 427.

This Motion is brought pursuant to *District Court Rules of Civil Procedure* ("DCRCP") Rule 62(b), pending the final hearing and disposition of Defendant's parallel Motion for Reconsider brought under DCRCP Rule 60(b)(4).

This Motion is supported by the attached Memorandum, the files and records of this case, the Declaration of Amanda L. Dutcher, and any oral argument presented at the hearing on this matter.

Dated: Honolulu, Hawai'i, August 19, 2026.

/s/ Amanda L. Dutcher
TERRANCE M. REVERE
AMANDA L. DUTCHER
Attorneys for Defendant and Counterclaim Plaintiff Nikodem Pikor

MEMORANDUM OF SUPPORT OF MOTION

I. INTRODUCTION & RELEVANT FACTS

This action stems from an Assumpsit Complaint initiated by Plaintiff Association of Apartment Owners of Marine Surf Waikiki, Inc. ("Plaintiff") to collect a minor elevator repair invoice totaling **$2,260.15** from Defendant and Counterclaim Nikodem Pikor ("Defendant"). Following trial, Plaintiff moved for an unprecedented post-judgment fee recovery.

On June 15, 2026, this Court entered Order Granting in Part and Denying in Part Plaintiff and Counterclaim Defendant Association of Apartment Owners of Marine Surf Waikiki, Inc. Motion for Attorneys' Fees and Costs, as Dkt. 423 (the "Order") awarding the AOAO $196,744.08 in legal fees and $12,743.54 in costs.

On June 23, 2026, this Court entered Judgment in favor of Plaintiff, as Dkt. 427 (the "Judgment").

Concurrently with this application, Defendant has filed a Motion for Reconsideration under *Hawaii District Court Rules of Civil Procedure* ("HDCRCP"), Rule 60(b)(4), presenting a jurisdictional challenge demonstrating that the June 15, 2026 Order awarding the AOAO $196,744.08 in legal fees is a legal nullity. Defendant now moves to stay enforcement of the Order and subsequent Judgment to preserve the status quo and prevent severe financial disruption while the Court assesses its jurisdictional authority related to the Order and Judgment.

II. LEGAL STANDARD

DCRCP Rule 62(b) explicitly governs stays of enforcement of judgments. It grants this Court broad power to check ongoing execution:

"In its discretion and on such conditions for the security of the adverse party as are proper, the court may stay the execution of or any proceedings to enforce a judgment pending the disposition of a motion... for relief from a judgment or order made pursuant to Rule 60[.]"

A trial court exercises its discretion to grant a stay by weighing the moving party's likelihood of success on the merits, the risk of irreparable injury if a stay is denied, the potential harm to the non-moving party, and the broader public interest. *See e.g. Dias v. Bank of Haw*., 764 F.2d 1292, 1295 (9th Cir. 1985)("the trial judge is governed by the equitable elements of both the stay requested and the Rule 60(b) motion, and should look to "the competing equities . . . [and] the strengths and weaknesses of the parties' position."); *See also Nken v. Holder*, 556 U.S. 418 (2009).

III. ARGUMENT

A. Defendant Has a Likelihood of Success on the Underlying Motion for Relief

The June 15, 2026 fee order is legally void under DCRCP Rule 60(b)(4) due to incurable defects in the Court's jurisdiction.

First, the underlying fee motion was filed on June 27, 2024. Under *Hawai'i Rules of Appellate Procedure* (HRAP) Rule 4(a)(3), the court was required to determine the Motion within 90 days. The Court conducted a final hearing on the Motion on January 13, 2025, and took the matter under advisement. Because no written order or extension was entered on the record within 90 days of the last hearing on the Motion, the Motion was "deemed denied" by operation of law.

Under the binding precedent of the Hawai'i Supreme Court in *Cole v. City and Cnty. of Honolulu*, 154 Hawai'i 28, 543 P.3d 460 (2024), and the Intermediate Court of

Appeals in *Ass'n of Apt. Owners of Nauru Tower v. Smith*, 2024 Haw. App. LEXIS 419 (App. Sept. 23, 2024), trial courts lack any legal capacity or power to determine a post-judgment motion once the 90-day operational window has closed. Any subsequent order entered past that window is an absolute "nullity." Because this Court's Order was entered more than a year after the last hearing on the Motion, it is void on its face.

B. Defendant Will Suffer Immediate, Severe, and Irreparable Harm Absent a Stay

If a stay is not granted, Plaintiff will be free to immediately initiate harsh collection efforts on a $196K judgment that is a known legal nullity. Plaintiff could place restrictive judgment liens on Defendant's real property, execute bank account garnishments, or seize liquid assets. Forcing an individual litigant to endure devastating asset disruption to satisfy a void, jurisdictionally defective order while a definitive Rule 60(b) challenge is pending constitutes classic irreparable harm.

C. A Stay Inflicts Zero Prejudice on Plaintiff and Serves Judicial Economy

Staying the execution of the Order and Judgment causes absolutely no prejudice to Plaintiff. Plaintiff's underlying judgment for the core $2,260.15 elevator dispute is unaffected by this Motion. Furthermore, if the fee Order is somehow upheld, Plaintiff remains protected by accrual of post-judgment interest.

Judicial economy is directly served by maintaining the status quo. It avoids a messy, complicated, and entirely unnecessary unraveling of assets that would occur if Plaintiff enforces a $196K judgment that this Court subsequently vacates as a nullity.

IV. CONCLUSION

For the reasons set forth above, Defendant Nikodem Pikor respectfully requests that this Court exercise its discretion under DCRCP Rule 62(b) and order an immediate

stay on the execution or enforcement of the June 15, 2026 Order pending final adjudication of the Motion for Relief.

DATED: Kailua, Hawai‘i, August 19, 2026.

/s/ Amanda L. Dutcher
TERRANCE M. REVERE
AMANDA L. DUTCHER
Attorneys for Defendant/Third Party
Plaintiff NIKODEM PIKOR

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Plaintiff, vs. NIKODEM PIKOR, Defendant.	Civil No. 1RC19-1-0003776 DECLARATION OF COUNSEL

DECLARATION OF COUNSEL

I, AMANDA L. DUTCHER, declare under penalty of law as follows:

1. I am an attorney licensed to practice law in the State of Hawai'i and am a partner with the law firm of Revere & Associates, counsel of record for Defendant Nikodem Pikor.

2. I make this declaration in support of Defendant's Motion to Stay Enforcement under DCRCP Rule 62(b)

3. Concurrently with this motion, Defendant has filed a comprehensive Motion for Reconsideration from Judgment under DCRCP Rule 60(b)(4), asserting that the June 15, 2026 Order is an absolute legal nullity under *Cole* and *Nauru Tower*.

4. Absent an immediate stay from this Court, Defendant face imminent financial jeopardy and property clouding from potential judgment execution efforts by Plaintiff to secure $196,744.08.

5. Granting this stay is necessary to preserve the status quo and prevent severe financial harm while this Court determines the threshold jurisdictional questions pending before it.

I declare under penalty of perjury under the laws of the State of Hawai‘i that the foregoing is true and correct.

DATED: Honolulu, Hawai‘i, August 19, 2026.

/s/ Amanda L. Dutcher
AMANDA L. DUTCHER

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Plaintiff, vs. NIKODEM PIKOR, Defendant.	Civil No. 1RC19-1-0003776 CERTIFICATE OF SERVICE

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the date below, a true and correct copy of the foregoing was duly served upon the following individuals via JEFS to their last known address noted below:

GLENN S. HORIO, ESQ. *gh@dkpvlaw.com*
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Attorney for Counterclaim Defendant

ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.

Dated: Honolulu, Hawaii, August 19, 2026.

/s/ *Amanda L. Dutcher*
TERRANCE M. REVERE
AMANDA L. DUTCHER
Attorneys for Defendant/Counterclaim Plaintiff
NIKODEM PIKOR